

Planning Commission Minutes of the Proceedings - Final

Historic Courthouse
310 W 19th Street
Cheyenne, WY 82001

Laramie County Planning Commission
Prepared by the Laramie County Planning & Development Office
Laramie County, Wyoming

Thursday, May 23, 2024

3:30 PM

Commissioners Board Room

Call To Order

Chairman Caughey called the meeting to order at 3:30 p.m. Guests were welcomed to the meeting and the assembly joined in the Pledge of Allegiance.

Roll Call

Present	Jason Caughey, Natacha Gaspar, Mark Smith
Excused	Jack Stadel, John Watkins

Approval of Minutes

1. Consideration of Minutes of the Proceedings for May 9, 2024.

[24 - 253](#)

Attachments: [PC 5.9.24 Draft](#)

Natacha Gaspar moved, seconded by Mark Smith to approve the Minutes of the Proceedings for May 9, 2024. Vote 3-0.

Aye: Caughey, Gaspar, Smith

Excused: Stadel, Watkins

Land Use:Variances/Board App./Plats

2. PUBLIC HEARING regarding R Bar H Ranch Estates, 3rd Filing Subdivision and Plat located at Tracts 1 and 2, R Bar H Ranch Estates, 2nd Filing, Laramie County, WY

[24 - 261](#)

Attachments: [PZ-24-00036 PC 5.23.24 Meeting Packet](#)
[PZ-24-00036 Email cancelling project](#)
[PZ-24-00036 PC Staff Report Cancellation](#)

At the request of the applicant the project has been withdrawn.

3. PUBLIC HEARING regarding the Cowboy Kids at Ridley Road Preliminary Development Plan located in a portion of Section 11, Township 15 North, Range 67 West, Laramie County, WY.

[24 - 262](#)

Attachments: [PZ-24-00041 PC Meeting Packet 5.23.24](#)
 [PZ-24-00041 Agency Comments Rev #2](#)
 [PZ-24-00041 Public Comment E. Rabel 5.21.24](#)
 [PZ-24-00041 Public Comment J. Deisch 5.21.24](#)
 [PZ-24-00041 Public Comment Lisa A. Bennett 5.22.24](#)

Cate Cundall, Associate Planner, said that AVI, PC , on behalf of Cowboy Kids Land Co., LLC, submitted a Preliminary Development Plan application for Cowboy Kids at Ridley Ranch located southwest of Interstate 25 and Ridley Road (County Road 220). Originally submitted as a 45 lot subdivision that included 2 non-buildable open space lots it has been revised and approximately 50 acres of what was open space is now proposed as a buildable lot.

Ms. Cundall said that the subdivision would be accessed via three approaches, two of which will be from the I-25 service road and one via Ridley Road. A preliminary traffic study has been submitted with the application. Future development of any lot within the development for a commercial use will have to go through a planning action process that will allow for the public to make comment. Agency review comments included gross lot sizes, access locations, and unresolved plat notes. Several written public comments in opposition to the development have been received in response to the public notice.

Rebekha Dostal from the Laramie County Attorney's office was present to answer questions regarding the project. Ms. Dostal said the company's status with the Secretary of State is now current but moving forward on any future subdivision or site plan applications the applicant will be required to provide a Certificate of Authority for whoever is signing the application.

Chairman Caughey opened the Public Hearing. Speaking in opposition of the project were: Steve Cooke, Eric Lundgren, Troy Guimond, Jeff Barnes, Cathy Barnes, Raeann Merry, Chad Wilson, and Russell Henning. Concerns included well interference, averaging gross acres for lot sizes, not labeling commercial and light industrial lots, reconfiguration of proposal is not similar to what was in the neighbor letter so public can't properly comment, commercial sites aren't addressed for water useage, light and noise pollution from commercial lots, and so many changes should require a new application.

Hearing no further comments the Public Hearing was closed. Justin Arnold answered the question on open space. If designated in a cluster development those open space lots become un-buildable and when applicant is averaging gross acres any future dividing of platted lots is not allowed.

Mark Christensen, applicants agent, said that the PDP is now 44 lots averaging 6.32 acres since the one open space was removed from the PDP. He said that the purpose of the PDP was to identify problems and that the subdivision application would address agency comments as they move forward. Mr. Christensen responded

to the question of what open range was removed, why the lots targeted for commercial and light industrial were not labeled, easements within the subdivision, and calculating gross acres using R-O-W.

Chairman Caughey said Mr. Christensen addressed public comments on access and the septic, but that obviously it looks like the original application was pieced it together to come up with this current application. There are significant inconsistencies in there. Moving forward, if it moves forward, what is the plan to make sure those aren't continued to be hiccups? Mr. Christensen said that this was just a PDP. The subdivision application is more strenuous and technical so they would unsure they are checking all those boxes. Some components were carried forward from the last application but they have ensured that they have corrected all of those for the subdivision permit.

A motion was made by Member Gaspar, seconded by Member Smith, that this agenda item be postponed until there is a complete PDP application.
Vote 3-0.

Aye: Caughey, Gaspar, Smith

Excused: Stadel, Watkins

Reports

Justin Arnold, Planning Manager, announced that Planning is tasked with enforcing the codified regulations and that applications meets those criteria for a development. He would like the public to know that currently planning staff has been working for about seven or eight months now rewriting the Land Use Regulations to make them more efficient and understandable for the general public and justifiable. We are tasked with respecting private property rights while ensuring that the development is responsible and done correctly. I would note that in the coming months, probably three or four, we will be going through reviews. We will have legal reviews of those proposal drafts and that will be available for public comments. I certainly would appreciate all input from local businesses, the public, anybody who is a stakeholder within our jurisdiction to provide their input cause that's what we are here for. We're all here to agree upon how we are going to responsibly develop our properties for later generations. I would appreciate that when we get to that stage. Grammatical checks are being completed and as soon as there is a clean draft it will be going to the County Attorney for a legal review but it will be put out for stakeholder input. There will Google forms on the Planning and Development website so we can get your feedback for the duration of the process which he anticipates will be several months. Mr. Arnold is hoping for a good regulation that will be good for a decade or so.

Chairman Caughey said that from the Planning Commission they all volunteer to serve because they feel it is important to hear you and also balance the regulations. There are also private property rights that developers have for what's allowable on their land and as long as they meet those requirements that's the key. It's important to recognize that nobody wants to hurt our community and we hear what you say. That is why your voice is incredibly important to be a participant in that process so that all bodies can be heard. Thank you for your consideration and comments today.

Adjournment

There being no further business the meeting was adjourned at 4:42 p.m.

CERTIFICATION

True and correct copy of the Minutes of the Proceedings for Thursday, May 23, 2024.

Approved by the Laramie County Planning Commission on Thursday, June 27, 2024.